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File No.: EXP202307638

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 29, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent is responsible for a garage that is used as a commercial premises for the sale of seafood, in which surveillance cameras have been installed aimed both at the public road and at common areas of the Community where the garage is located, without having authorization for this.

Along with the notification, images of the camera locations and the Community of Owners Act are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received by the responsible party on June 8, 2023, as evidenced by the acknowledgment of receipt in the file.

On June 14, 2023, a response was received indicating:

“-The contact for the surveillance system is B.B.B., with DNI ***NIF.1 and email ***EMAIL.1

-Currently, 9 surveillance cameras are installed, of which only 8 are operational due to security issues. Photographs of the cameras and photographs of the monitor are attached, showing that there is no visibility of the public road, except for the minimum captured by the camera's viewing angle.

-A photograph of the location of the informational sign warning of the existence of a video-monitored area is provided.

The recordings last 15 days and this has been discussed with the community.”

Due to the lack of response to the questions raised regarding community-captured spaces, information was requested again with the following text:

-It is noted that the field of vision of camera number 1 has not been modified, which may not comply with data protection regulations, therefore it is requested that new images of its field of vision be provided within the timeframe established in this document.

To this end, it is reminded that cameras cannot capture excessive public road, but only a minimal proportional space that serves its purpose, the control of the security of the establishment and its occupants. It is also reminded that the field of vision of the camera cannot include spaces that are owned by third parties or communal areas.

It is important to know that sometimes it is sufficient to reorient the device to modify its field of vision; other times the camera cannot be relocated, and then privacy masks can be introduced to hide the spaces that the camera cannot capture.

-Additionally, there has been no response to the request for information on whether any of the recordings provided from the 8 operational cameras correspond to spaces of the Community of Owners, in which case a copy of the minutes of the Owners' Meeting approving or authorizing, by the majority required in Article 17.3 of Law 49/1960, of July 21, on Horizontal Property, the installation of surveillance cameras capturing community spaces must be provided.

-Report whether the recordings made by cameras 1 and 9 are community spaces or public roads.

-Provide the recordings made by the cameras, whose photographs are attached to this document.

This request for information was notified to the respondent on July 4, 2023, by postal mail, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, according to the delivery proof in the file.

THIRD: On August 29, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On September 25, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was

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received on September 25, 2023, as stated in the acknowledgment of receipt in the file.

SIXTH: On September 29, 2023, a written statement of allegations was received from the responding party, which, in summary, includes the following considerations:

“In response to your written communication from file EXP202307638 regarding the initiation of the warning procedure, I indicate and clarify the following issues that you have raised:

1- Regarding the field of vision of camera number 1, new images of the field of vision are provided where the minimum of the public road is captured.

2- The recordings from the 8 cameras for which images were attached clarify that not all correspond to spaces of the community of property, as only cameras 1 and 9 are external to the private installations, with the rest being images from within our facilities.

3- Cameras 1 and 9 are public road spaces. In camera 1, the minimum visual field of the public road is visible, and the same applies to camera 9, where it is also noted that camera 9 is located at the entrance of our warehouse where high-cost products are stored; this location is in a dead-end alley with no traffic.

4- Images of the recordings made by the cameras are provided.

5- Additionally, two documents are attached that demonstrate that the installation of the cameras is known to the neighbors.”

In light of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

FIRST: It is noted that the responding party is responsible for a garage that is used as a commercial premises for the sale of seafood, in which surveillance cameras have been installed that capture part of the public road.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In response to the allegations presented by the responding entity, the following should be noted:

-The responding party alleges that regarding the field of vision of camera number 1, new images of the field of vision are provided where the minimum of the public road is captured. Cameras 1 and 9 are public road spaces; camera 9 is located at the entrance of their warehouse where high-cost products are stored; this location is in a dead-end alley with no traffic.

In this regard, this Agency indicates that, in the images provided in the transfer action, it is observed that both cameras, 1 and 9, capture parts of the public road that have been considered excessive for the purpose pursued by the installation of video cameras.

-The responding party alleges that the installation of the cameras is known to the neighbors.

In this regard, this Agency points out that the fact that the installation of video cameras is known to the neighbors does not imply that it is consented to. Furthermore, what is at issue in this procedure is not exactly the consent for the installation, but the scope of the capture of said cameras, which is deemed excessive in light of the images in the file. In any case, the consent of the neighbors does not remedy the irregularity of capturing the public road, which affects any passerby.

III

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

"processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;" The images generated by a system of cameras or video cameras are personal data, thus their processing is subject to data protection regulations.

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It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

IV

Article 5.1(c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1(c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places may only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on

facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

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Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified and accredited cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

In this case, from the documentation provided in the file, it can be inferred that the respondent has installed video surveillance cameras, two of which record areas of the public road that are considered excessive in relation to the initial purpose of the camera.

V

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR. "Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means."

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- The images may be retained for a maximum period of one month, unless in those cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

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In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
 - the Guide on the use of video cameras for security and other purposes,
 - the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).
- It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and, if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

It is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)."

VII

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)."

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

In the present case, given the concurrent circumstances, it is deemed appropriate to issue a warning for the infringement committed.

VIII

Article 58.2 d) of the GDPR indicates that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...". In this case, the party being addressed must proceed, within 30 days from the receipt of this resolution, to:

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To certify that the removal of the camera or video camera system from the current location has been carried out, or its reorientation, in such a way that the viewing of the observed images evidences that it does not capture

- The public road.

It is noted that failure to comply with any possible order to adopt measures imposed by this agency in the resolution of the present procedure may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infraction of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days, to certify having complied with:

• the removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the observed images evidences that it does not capture

- The public road.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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